

-

File No.: EXP202311799

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 3, 2023, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection against CAIXABANK, S.A. with NIF A08663619 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The claimant states that their personal data has been included in common credit information systems by the respondent without having received a prior payment request.

Along with their complaint, they provided:

- Document from the company EQUIFAX dated 01/28/2022 regarding operations of the ASNEF file, which shows a debt associated with the claimant.
- Report from the Department of Conduct of Entities of the Bank of Spain, dated 11/29/2022, regarding the complaint filed by the claimant on 07/18/2022 against the respondent.
- Letter dated 11/13/2021, which the respondent attached in their response to the Bank of Spain, regarding the mortgage loan ***REFERENCE.1, through which the loan holders are informed of the amount of the overdue debt, requesting its regularization and providing information regarding CaixaBank's adherence to the Code of Good Practices.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 09/08/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered on 09/11/2023 as stated in the certificate of Unique Enabled Electronic Address (DEHÚ) in the file.

No response has been received to this forwarding letter.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

THIRD: On October 3, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

Throughout the preliminary investigative proceedings, two requests for information were made to both the respondent and ASNEF. On 12/12/2023, the accreditation of the claimant's registration and deregistration requests in the credit information systems was requested, as well as the acknowledgment of receipt of both the payment request document and the notification of inclusion sent to the claimant. On 07/03/2024, requests for information were sent to both entities requesting clarifications on the responses to the initial requests.

The information obtained from these actions is structured, for greater clarity, in the following sections:

1. Information provided by the respondent and by ASNEF.
2. Chronology of events.

3. Response from the respondent.

4. Response from ASNEF.

5. Conclusions.

1. Information provided by the respondent and by ASNEF:

1.1. The respondent responds to the first request for information, with a registration date of 12/28/2023, providing the following documentation along with their response letter:

- Access sheet indicating all products and services contracted by the claimant with the respondent.
- Screenshot with the address recorded in the respondent's systems associated with the claimant.
- Payment request sent to the claimant on 11/18/2021.
- Contract signed between the respondent and SERVINFORN (currently ARTEOS DIGITAL S.L.) on 04/02/2018, which includes the contracted service regarding the printing and deposit in postal operators of prior payment requests from their clients with defaults.
- Shipping certificate issued by ARTEOS that includes the delivery note in CORREOS.
- Letter sent on 12/20/2023 to the claimant, in response to their complaint filed with the AEPD.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

1.1.

The responding party answers the second request for information dated 18/07/2024, providing the following documentation along with its response:

- Informative letter dated 13/11/2021 sent to the holders of the loan, regarding the amount of the overdue debt and a request for regularization.
- Payment demand prior to inclusion, sent to the claimant on 18/11/2021.

1.1.

ASNEF responds to the first request for information dated 14/12/2023, providing the following documentation along with its response:

- Printout of evidentiary screens corresponding to the Auxiliary Files of Notifications and Canceled Operations in the ASNEF file.
- Copy of the communications maintained between ASNEF and the claimant from 01/01/2020 to the present.
- Information corresponding to the data confirmation requests that were managed in these files.

1.1.

ASNEF responds to the second request for information dated 9/07/2024, providing the following documentation along with its response:

- Printout of evidentiary screen with the list of notifications sent in the name of the holder for at least the last four years and the breakdown corresponding to the entry from CAIXABANK.
- Certification regarding the management and sending of the inclusion notification.
- Printout of screen with the query to the Auxiliary File of Canceled Operations in the ASNEF file.

In the documentation provided by the claimant, the following postal addresses are specified:

The property purchase deed indicates the address of the purchasing party:

***ADDRESS.1

The deed of extension and modification of the mortgage loan indicates the address of the purchasing party:

***ADDRESS.1

The letter document dated 13/11/2021 that the responding party attached in its response to the Bank of Spain, regarding the referenced mortgage loan, indicates the mailing address of the letter:

***ADDRESS.1

C/ Jorge Juan, 6

www.aepd.es

4/14

The report from the Bank of Spain specifies:

"It is noteworthy that the address reported in said document" (letter dated 13/11/2021) would coincide with the address indicated by the claimant in their complaint addressed to the entity dated January 17, 2022."

The documentation provided by ASNEF regarding the communications maintained between ASNEF and the claimant includes emails up to March 2023 in which the claimant sends their ID, specifying the address:

***ADDRESS.1

In their complaint dated July 3, 2023, the claimant indicates the following address for notification purposes:

***ADDRESS.2

It is relevant to highlight that, on dates subsequent to the events, the claimant still indicated the address ***ADDRESS.1 in their complaint writings to the responding party and communications with ASNEF, although at the time of filing the complaint with the Agency, the claimant had changed their address for notification purposes.

On the other hand, it is important to mention that the deeds of the mortgage loan that originated the debt are signed with dates 2001, 2002, and 2007 and do not reflect the contractual provision stating that the entity may transfer personal data to solvency files.

It is also worth noting that the report from the Bank of Spain relates to the complaint filed by the claimant against the responding party and the Conduct of Entities Department of the Bank of Spain, in which it not only states that the entity would have communicated their personal data to solvency files but also expresses their disagreement with the collection of fees for defaults and requests the reimbursement of the costs of formalizing their mortgage loan.

1.

Chronology of Events

- November 13, 2021: letter sent by the responding party to the claimant (which they state they did not receive) informing them of the amount of the overdue debt to the holders of the mortgage loan ***REFERENCE.1, requesting their regularization and providing them with information regarding their adherence to the Code of Good Practices. The responding party attached this letter in its response to the Bank of Spain, indicating the amount of the debt as €2,030.4.
- November 18, 2021: payment demand regarding the mortgage loan ***REFERENCE.1 sent by the responding party to the claimant (which they state they did not receive). The responding party attached this document to the AEPD in its response to the request for information on December 28, 2023. It indicates an amount of €1,685.69.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/14

- December 13, 2021: transfer of data to ASNEF by the responding party with an outstanding balance at the time of inclusion of 2,358.68 euros.
- December 14, 2021: notification of inclusion by ASNEF to the claiming party, sent by ordinary postal mail to the address provided by the creditor.
- January 4, 2022 and January 5, 2022: requests from the claiming party to ASNEF for the exercise of the right of cancellation.
- January 19, 2022: precautionary removal of the data associated with the claiming party transferred by the responding party, with a balance of 3,031.98 euros.
- July 18, 2022: filing of a complaint against the responding party before the Department of Conduct of Entities of the Bank of Spain.

- November 29, 2022: Report from the Department of Conduct of Entities of the Bank of Spain regarding the complaint filed by the claiming party on July 18, 2022, against the responding party.
- July 3, 2023: date of entry of the complaint before the AEPD.

1. Response from the responding party

1.1. Regarding the contracted products and address associated with the claiming party:

The responding party provides in its response to the first request for information, an access sheet that shows all the products and services contracted by the claiming party as of 12/18/2023. This document shows the existence of a mortgage loan contract in default with ID: ***REFERENCE.1.

The postal address listed for all contracted products is: ***ADDRESS.1

The responding party also provides a screenshot of the address recorded in its systems, associated with the claiming party, which matches the previous address.

1.2. Regarding the payment requests.

The responding party provides a copy of the letter dated 11/18/2021, sent to the claiming party requesting payment of the debt and informing them of the possibility of inclusion of their data in credit information systems.

It is evident that the claiming party is listed as the recipient and the address recorded as associated in the systems of the responding party.

1.3. Regarding the system implemented for sending prior payment requests.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/14

The responding party explains the system it has implemented for sending prior payment requests to its clients:

- The responding party sends the prior payment request via postal mail with the participation of ARTEOS DIGITAL S.L. (formerly known as SERVIFORM) and CORREOS.
- ARTEOS prints the letter (prior payment request), envelopes it, and makes it available to CORREOS for dispatch.
- ARTEOS monitors the possible return of the payment request through a dedicated Post Office Box. The file includes the contract signed between the responding party and SERVIFORM (currently ARTEOS DIGITAL S.L.) dated 04/02/2018. This contract outlines the service that the responding party has commissioned ARTEOS DIGITAL to provide regarding prior payment requests for its clients with defaults. The shipping certificate issued by ARTEOS is attached, which includes the delivery receipt from CORREOS.

Regarding the management of returns, section 7 of the previous contract specifies:

“07 MANAGEMENT OF RETURNS

- The envelopes will bear a printed number of a Post Office Box dedicated exclusively to receiving envelopes that Correos cannot deliver.
- The envelope will also include a table with the different reasons why an envelope cannot be delivered. The delivery person will mark the reason (absent, incorrect address, etc.).
- SERVIFORM will collect the returns from the designated Post Office Box weekly and notify CaixaBank through a file.
- The information recorded and sent to CaixaBank for each return will include:
- Unique identifier of the letter
- Reason for return indicated on the envelope
- Periodically (weekly or as deemed appropriate), a validation control of all returns will be conducted with CaixaBank (Cartería, GCC, ASN...).
- Weekly, the returned envelopes will be sent to CaixaBank's Cartería.

To return the information to GCC regarding the envelopes, one can:

- 1.- Read the barcode (datamatrix) that appears on the window.

2.- Type the unique identifier number printed on the document.

The file with the information will be returned to GCC for them to carry out the corresponding process agreed with CaixaBank for this specific process."

1.1. Regarding the sending and delivery of the payment request dated 11/18/2021.

The responding party attaches the shipping certificate issued by ARTEOS dated 12/19/2023, which includes the following information:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

- "That the letter with identifier ***REFERENCIA.2, 'once received, was printed, enveloped, and delivered to the postal distributor for shipment to the address indicated therein.'"

- "That there is no record of any incident in its generation, enveloping, and delivery process to the postal operator for shipment regarding the related communication, and there is no evidence that this envelope has been returned in the Database."

The certificate includes a copy of the payment request and the delivery receipt from CORREOS.

1.1.

Regarding the information provided to the claimant about the possibility of inclusion in common credit information systems.

In relation to the information provided by the responding party to the claimant regarding the possibility of inclusion in common credit information systems, the responding party, in its response to the first information request, states that "in the documents submitted regarding the letters sent to the claimant, such references can be observed, as well as information about the exercise of rights" and "in the privacy policy published at www.caixabank.com/politicaprivacidad, it is also informed about the possibility of reporting to credit information systems in case of non-payment."

It is verified that the payment request sent by the responding party to the claimant on 11/18/2021 includes the following information:

"Since the amount has not been paid within the stipulated time, we inform you that, in the event that the indicated non-payment situation persists, the data related to it may be communicated to the following credit information systems:

FICHERO ASNEF

Asnef Equifax Information Services on Solvency and Credit

P.O. Box 10546 28080 Madrid (sac@equifax.es)

FICHERO BADEXCUG

Experian Credit Bureau

P.O. Box 1188 28108 Alcobendas (badexcug@experian.com)"

"In relation to the inclusion of non-payment data in the aforementioned files, the amount resulting from adding to the amount stated in this document, if applicable, the successive installments that are due and the accrued interest, as well as the commissions or other expenses that are incurred, will be communicated. Likewise, in the case of contracts subject to early maturity due to breach of the acquired obligations, the amount corresponding to the total debt will be communicated (i.e., overdue principal, outstanding principal, accrued interest, and any other accrued interest and commissions or expenses)."

1.2.

Regarding the amounts specified in the payment requests and the unpaid balance at the times of inclusion and deregistration.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/14

When consulted about the different amounts specified in the payment requests, the responding party clarifies in its response to the second information request that the document sent to the claimant on November 13, 2021, "is not a prior payment request, but a letter informing the loan holders of the amount of the overdue debt, requesting their regularization and providing them with information regarding CaixaBank's adherence to the Code of Good Practices."

The responding party provides a screenshot related to the movements of the loan held by the claimant that justifies the different amounts, caused by the evolution of the debt.

The payment request prior to inclusion sent to the claimant indicates the start date of the non-payment situation and the unpaid amount as of the date of the prior payment request and informs that the data related to the non-payment is modified according to the new unpaid amounts: "the amount resulting from adding to the amount stated in this document, if applicable, the successive installments that are due and the accrued interest, as well as the commissions or other expenses that are incurred will be communicated."

2.

Response from ASNEF.

2.1.

Regarding the registration request by the responding party.

When consulted regarding the accreditation of the registration and deregistration requests of the claimant in the credit information systems of its data company by the responding party, in the last four years, ASNEF provides prints of screens evidencing the Auxiliary Notification and Canceled Operations files in the ASNEF file, indicating that "the claimant's data has been transferred by the responding party from 12/13/2021 to 01/19/2022, for a mortgage loan as the holder, with an unpaid balance at the time of inclusion of €2,358.68."

ASNEF provides as evidence the print of screens evidencing the Auxiliary files.

It is noted that the unpaid balance at the time of deregistration is €3,031.98.

2.2.

Regarding the communications maintained with the claimant.

When requested for information about the communications maintained between ASNEF and the claimant from 01/01/2020 to the present, ASNEF provides a copy of these communications. As a summary, the following requests are processed:

- On 09/20/2020, a request for the exercise of the right of cancellation was managed, proceeding with the precautionary deregistration of the data transferred by the entity DEUTSCHE BANK since it did not respond within the time provided for the request for confirmation of data required in this regard.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/14

- On 10/10/2020, a data confirmation was requested from the entity PROMONTORIA ARES DAC, and the response received from them was "Correct Data," therefore the data remained registered in the file.

- On 22/10/2020, a data confirmation was requested from the entity PROMONTORIA ARES DAC, and the response received from them was "Correct Data," therefore the data remained registered in the file.

- On 04/01/2022 and 05/01/2022, a request for cancellation was processed, proceeding with the precautionary removal of the data provided by the responding party.

- On 05/03/2023, 23/03/2023, and 27/03/2023, requests for access rights were managed, additionally providing the historical data requested by the holder. The historical data provided is as follows:

- BBVA DATE OF REGISTRATION 23/12/2021 DATE OF REMOVAL 30/12/2022

- BBVA DATE OF REGISTRATION 23/12/2021 DATE OF REMOVAL 30/12/2022

- DEUTSCHE BANK DATE OF REGISTRATION 06/03/2019 DATE OF REMOVAL 15/01/2020
- DEUTSCHE BANK DATE OF REGISTRATION 10/07/2019 DATE OF REMOVAL 29/09/2020
- BANCO SANTANDER DATE OF REGISTRATION 04/03/2019 DATE OF REMOVAL 31/12/2019
- BANCO SANTANDER DATE OF REGISTRATION 12/11/2018 DATE OF REMOVAL 31/12/2019
- CAIXABANK SA DATE OF REGISTRATION 26/12/2018 DATE OF REMOVAL 23/04/2019
- CAIXABANK SA DATE OF REGISTRATION 13/12/2021 DATE OF REMOVAL 19/01/2022
- PROMONTORIA ARES DAC DATE OF REGISTRATION 18/09/2020 DATE OF REMOVAL 11/02/2023
- PROMONTORIA ARES DAC DATE OF REGISTRATION 18/09/2020 DATE OF REMOVAL 11/02/2023
- FIN. EL CORTE INGLÉS DATE OF REGISTRATION 02/11/2018 DATE OF REMOVAL 19/10/2021
- ZOLCA NPLCO SAR.L DATE OF REGISTRATION 02/01/2023 DATE OF REMOVAL 03/03/2023

ASNEF also provides the information corresponding to the data confirmation requests that were managed in these files; it can be verified, among other aspects, the unpaid balance declared in the file at the time of management, the type of product claimed, the date of submission of the request, the due date, the name of the creditor, and their response.

Regarding the responding party, ASNEF provides the following information:

- Unpaid balance declared in the file at the time of management: 3031.98
- Type of product claimed: MORTGAGE LOAN
- Date of submission of the request: 12/01/2022 00:00
- Due date: 19/01/2022 00:00
- Date of response: 18/01/2022 00:00
- Name of the creditor: CAIXABANK SA
- Response: Precautionary removal

1.1.

Regarding the sending and delivery of the notification of inclusion.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/14

ASNEF informs in its response to the second request for information that the inclusion was notified "under the communication reference ***REFERENCE.3, issued on 14/12/2021 by ordinary postal mail to the address provided by the creditor."

It provides as evidence a screenshot certifying the list of notifications sent in the name of the holder during at least the last four years and the breakdown corresponding to the annotation of CAIXABANK.

Regarding the management and sending of the notification, ASNEF provides as evidence the document that includes:

"- Certification issued by ARTEOS DIGITAL, S.L, as the successor entity of SERVIFORM, S.A. (formerly EMFASIS BILLING & Marketing Services, S.L), provider of the Service of Generation, Printing, and Provision of Postal Sending Services -Correos and/or Unipost-, certifying the date of the notification of inclusion referenced, along with the rest of the communications issued in the same process without any incident occurring that would have prevented its execution, as well as the date it was made available to the postal sending service.

- Copy of the notification of inclusion.
- Delivery note and receipt at the Post Office and Hispapost, with its admission date value.
- Certification issued by the service provider for the recording and custody of the returns of the notifications, Ilunion CEE Contact Center SA, certifying that the notification of inclusion referenced is not in their deposit and custody, nor has it been subject to their treatment for any reason of return, dated July 8, 2024."

2.

Conclusions

“Preliminary investigation actions initiated due to the alleged transfer of the personal data of the claiming party to a solvency file in December 2021.

The mortgage loan deeds that originated the debt are signed with dates 2001, 2002, and 2007 and do not reflect the contractual provision in which it states that the entity may transfer personal data to solvency files.

The data of the claiming party was registered in the ASNEF file on December 13, 2021, with unpaid due dates between August 22, 2021, and December 22, 2021, date of viewing January 12, 2022 (it would have been available for consultation by third parties between January 12 and January 19, 2022) and precautionary removal on January 19, 2022.

There is no record that the debt was subsequently re-registered.

The claimant exercised the right of cancellation against ASNEF on January 4, 2022, and January 5, 2022.

Evidence has been provided in the form of the certificate issued by the service provider for the recording and custody of the returns of the notifications, certifying that

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/14

The notification of inclusion is not recorded in deposit and custody, nor has it been subject to any treatment for any reason of return.

Evidence has been provided in the form of a certificate issued by the service provider for the recording and custody of the notifications' returns, certifying that the payment request dated November 18, 2021, was printed, enveloped, and delivered to the postal operator for dispatch, with no record that this envelope has been returned in the Database.

It has been confirmed that the address to which the payment request and the inclusion notification were sent is the same as the address recorded in the systems of the responding party associated with the claiming party, which is the address listed in the mortgage loan deeds and the address appearing on the ID of the claiming party.

It has been evidenced that the payment request sent by the responding party to the claiming party informs about the possibility of inclusion in common credit information systems.

The payment request sent by the responding party to the claiming party refers to an unpaid amount of 1,685.69 euros. Date: November 18, 2021.

The inclusion notification made by ASNEF to the claiming party refers to an unpaid balance at the time of inclusion of 2,358.68 euros. Date: December 13, 2021.

The precautionary cancellation was carried out on January 19, 2022, with an unpaid amount of 3,031.98 euros.

It has been evidenced that the payment request sent by the responding party to the claiming party informs about the possibility of modification of the amount in accordance with the new unpaid amounts.

LEGAL GROUNDS

I. Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II. Credit Information Systems

Article 20 of the LOPDGDD, which regulates credit information systems, provides in its first section the

following:

"1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.

- d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the date of maturity of the monetary, financial, or credit obligation.
- e) That the data relating to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.

When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

- f) That, in the event that the request for the celebration of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the party who consulted the system shall inform the affected party of the outcome of said consultation."

III

Conclusion

Therefore, based on the information indicated in the previous paragraphs, it must be taken into account that the following is recorded in the file:

- Informative letter dated 13/11/2021 sent by the responding party to the claiming party, informing about the amount of the overdue debt, requesting its regularization, and providing information regarding adherence to the Code of Good Practices.
- Payment request dated 18/11/2021 sent by the responding party to the claiming party, warning that, in case of non-payment, the claiming party could be included in a credit information file.
- Notification of inclusion dated 14/12/2021 sent by ASNEF to the claiming party.

For all three communications, a certificate from an external company is provided, certifying that the three communications directed to the claiming party were generated and printed, containing the information required by Article 20 of the LOPDGDD. Additionally, a delivery receipt from CORREOS-HISPAPOST for the communications and a certificate from an external company confirming non-return of the letter are provided, thus making their actions compliant with the law.

On the other hand, regarding the postal address of the claiming party, it has been confirmed that the address to which the payment request and the notification of inclusion were sent is the same as the address recorded in the systems of the responding party associated with the claiming party, which is

the address listed in the mortgage loan deeds and the address appearing on the ID of the claiming party.

Furthermore, the responding party has proven the existence of a contract, and no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CAIXABANK, S.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es